

AMENDMENT OF SOLICITATION/MODIFICATION OF CONTRACT				1. CONTRACT ID CODE J		PAGE 1 OF 2 PAGES	
2. AMENDMENT/MODIFICATION NUMBER 0002		3. EFFECTIVE DATE 22 APR 2026		4. REQUISITION/PURCHASE REQUISITION NUMBER		5. PROJECT NUMBER (If applicable) W9127826BA001	
6. ISSUED BY W074 ENDIST MOBILE KO CONTRACTING DIVISION, 100 CANAL STREET MOBILE, AL 36602-3630 UNITED STATES TERRI ADAMS, EMAIL: TERRI.M.ADAMS@USACE.ARMY.MIL TELEPHONE: (251) 441-6500		CODE W91278		7. ADMINISTERED BY (If other than Item 6) SCD: PAS:		CODE	
8. NAME AND ADDRESS OF CONTRACTOR (Number, street, county, State and ZIP Code)				(X)		9A. AMENDMENT OF SOLICITATION NUMBER W9127826BA001	
				☒		9B. DATED (SEE ITEM 11) 26 MAR 2026	
				☐		10A. MODIFICATION OF CONTRACT/ORDER NUMBER	
				☐		10B. DATED (SEE ITEM 13)	
CODE		FACILITY CODE					

11. THIS ITEM ONLY APPLIES TO AMENDMENTS OF SOLICITATIONS

☒ The above numbered solicitation is amended as set forth in Item 14. The hour and date specified for receipt of Offers ☒ is extended. ☐ is not extended.

Offers must acknowledge receipt of this amendment prior to the hour and date specified in the solicitation or as amended, by one of the following methods:
 (a) By completing items 8 and 15, and returning 1 copies of the amendment; (b) By acknowledging receipt of this amendment on each copy of the offer submitted;
 or (c) By separate letter or electronic communication which includes a reference to the solicitation and amendment numbers. FAILURE OF YOUR ACKNOWLEDGMENT TO BE RECEIVED AT THE PLACE DESIGNATED FOR THE RECEIPT OF OFFERS PRIOR TO THE HOUR AND DATE SPECIFIED MAY RESULT IN REJECTION OF YOUR OFFER.
 If by virtue of this amendment you desire to change an offer already submitted, such change may be made by letter or electronic communication, provided each letter or electronic communication makes reference to the solicitation and this amendment, and is received prior to the opening hour and date specified.

12. ACCOUNTING AND APPROPRIATION DATA (If required)
 SEE SECTION G - CONTRACT ADMINISTRATION DATA

**13. THIS ITEM APPLIES ONLY TO MODIFICATIONS OF CONTRACTS/ORDERS.
IT MODIFIES THE CONTRACT/ORDER NUMBER AS DESCRIBED IN ITEM 14.**

CHECK ONE	A. THIS CHANGE ORDER IS ISSUED PURSUANT TO: (Specify authority) THE CHANGES SET FORTH IN ITEM 14 ARE MADE IN THE CONTRACT ORDER NUMBER IN ITEM 10A.
☐	
☐	B. THE ABOVE NUMBERED CONTRACT/ORDER IS MODIFIED TO REFLECT THE ADMINISTRATIVE CHANGES (such as changes in paying office, appropriation data, etc.) SET FORTH IN ITEM 14, PURSUANT TO THE AUTHORITY OF FAR 43.103(b).
☐	C. THIS SUPPLEMENTAL AGREEMENT IS ENTERED INTO PURSUANT TO AUTHORITY OF:
☐	D. OTHER (Specify type of modification and authority)

E. IMPORTANT: Contractor ☐ is not ☐ is required to sign this document and return _____ copies to the issuing office.

14. DESCRIPTION OF AMENDMENT/MODIFICATION (Organized by UCF section headings, including solicitation/contract subject matter where feasible.)
 REFER TO THE ENCLOSED REVISED SHEETS FOR AMENDMENT NO. 0002

Except as provided herein, all terms and conditions of the document referenced in Item 9A or 10A, as heretofore changed, remains unchanged and in full force and effect.

15A. NAME AND TITLE OF SIGNER (Type or print)		16A. NAME AND TITLE OF CONTRACTING OFFICER (Type or print)	
15B. CONTRACTOR/OFFEROR	15C. DATE SIGNED	16B. UNITED STATES OF AMERICA	16C. DATE SIGNED
(Signature of person authorized to sign)		(Signature of Contracting Officer)	

SECTION SF 30 BLOCK 14 CONTINUATION PAGE
SUMMARY OF CHANGES

Section 00 00 00 - Procurement and Contracting Requirements

The following changes have been made:

INFORMATION	FROM	TO
Response Due Date	27 Apr 2026	04 May 2026

PART I-REVISIONS MADE BY ADDED AND/OR REPLACEMENT PARAGRAPHS/PAGES/SECTIONS

The items listed below are to be replaced by the corresponding added and/or revised paragraphs/pages or sections. Added and/or revised paragraphs/pages or sections are indicated by a note in bottom right hand corner of each paragraph or page. Added sections are hereby made a part of the contract and are to be inserted in the specification in the proper numerical/alphabetical sequence.

Within the specifications, deletions from the specifications are indicated by strikethrough, e.g.: deletions are marked with strikethrough and additions to the specifications including revisions/substitutions are indicated in bold, italic and underlined, e.g.: ***additions are indicated thus.***

<u>SECTION</u>	<u>Corresponding Added or Revised Paragraph Page, and/or Section</u>
SF1442	Revised Boxes 11 and 13a.
Section 00 73 00	Revised Commencement, Prosecution, and Completion of Work-Construction.
Section 01 00 00	Revised Paragraph 1.1.3.
Section 01 00 01	Revised Paragraph 29.

Encl as stated

SOLICITATION, OFFER, AND AWARD <i>(Construction, Alteration, or Repair)</i>	1. SOLICITATION NUMBER	2. TYPE OF SOLICITATION	3. DATE ISSUED	PAGE	OF	PAGES
	W9127826BA001	☒ SEALED BID (IFB) INVITATION FOR BID ☐ NEGOTIATED (RFP) REQUEST FOR PROPOSAL	26 March 2026	1		2

IMPORTANT - The "offer" section on the reverse must be fully completed by offeror.

4. CONTRACT NUMBER		5. REQUISITION/PURCHASE REQUEST NUMBER	6. PROJECT NUMBER
			W9127826BA001
7. ISSUED BY	CODE	8. ADDRESS OFFER TO	
W074 ENDIST MOBILE KO CONTRACTING DIVISION, 100 CANAL STREET MOBILE, AL 36602-3630 UNITED STATES TERRI ADAMS, EMAIL: TERRI.M.ADAMS@USACE.ARMY.MIL TELEPHONE: (251) 441-6500	W91278		
9. FOR INFORMATION CALL:	a. NAME	b. TELEPHONE NUMBER <i>(Include area code) (NO COLLECT CALLS)</i>	
	TERRI ADAMS	(251) 441-6500	

SOLICITATION

NOTE: In sealed bid solicitations "offer" and "offeror" mean "bid and "bidder".

10. THE GOVERNMENT REQUIRES PERFORMANCE OF THE WORK DESCRIBED IN THESE DOCUMENTS *(Title, identifying number, date)*

PROJECT TITLE: MAINTENANCE DREDGING MOBILE HARBOR
PROJECT LOCATION: MOBILE, AL

MAINTENANCE DREDGING MOBILE HARBOR

*SEE SECTION 00 73 00 - COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK

**FOR INFORMATION PERTAINING TO SUBMISSION OF ELECTRONIC BIDS AND VIRTUAL BID OPENING, SEE PARAGRAPH 29 IN SECTION 01 00 01

11. The contractor shall begin performance within <u>10</u> calendar days and complete it within 480 <u>240</u> calendar days after receiving	
☐ award, ☒ notice to proceed. This performance period is ☒ mandatory ☐ negotiable. (See Commencement, Prosecution, and Completion of Work).	
12a. THE CONTRACTOR MUST FURNISH ANY REQUIRED PERFORMANCE AND PAYMENT BONDS? <i>(If "YES", indicate within how many calendar days after award in Item 12b.)</i>	12b. CALENDAR DAYS
☒ YES ☐ NO	10
13. ADDITIONAL SOLICITATION REQUIREMENTS:	
a. Sealed offers in original and _____ copies to perform the work required are due at the place specified in Item 8 by <u>02:00 PM</u> (hour) local time <u>27 APR 04 MAY 2026</u> (date). If this is a sealed bid solicitation, offers will be publicly opened at that time. Sealed envelopes containing offers shall be marked to show the offeror's name and address, the solicitation number, and the date and time offers are due.	
b. An offer guarantee ☒ is, ☐ is not required.	
c. All offers are subject to the (1) work requirements, and (2) other provisions and clauses incorporated in the solicitation in full text or by reference.	
d. Offers providing less than <u>120</u> calendar days for Government acceptance after the date offers are due will not be considered and will be rejected.	

OFFER (Must be fully completed by offeror)

14. NAME AND ADDRESS OF OFFEROR (Include ZIP Code)		15. TELEPHONE NUMBER (Include area code)	
		16. REMITTANCE ADDRESS (Include only if different than Item 14.)	
CODE	FACILITY CODE		

17. The offeror agrees to perform the work required at the prices specified below in strict accordance with the terms of this solicitation, if this offer is accepted by the Government in writing within _____ calendar days after the date offers are due. (Insert any number equal to or greater than the minimum requirement stated in Item 13d. Failure to insert any number means the offeror accepts the minimum in Item 13d.)

AMOUNTS



18. The offeror agrees to furnish any required performance and payment bonds.

19. ACKNOWLEDGMENT OF AMENDMENTS

(The offeror acknowledges receipt of amendments to the solicitation -- give number and date of each)

AMENDMENT NUMBER										
DATE										

20a. NAME AND TITLE OF PERSON AUTHORIZED TO SIGN OFFER (Type or print)	20b. SIGNATURE	20c. OFFER DATE

AWARD (To be completed by Government)

21. ITEMS ACCEPTED:

22. AMOUNT	23. ACCOUNTING AND APPROPRIATION DATA
24. SUBMIT INVOICES TO ADDRESS SHOWN IN (4 copies unless otherwise specified)	25. OTHER THAN FULL AND OPEN COMPETITION PURSUANT TO THE UNITED STATES CODE AT ☐ 10 U.S.C. 3204(a) () ☐ 41 U.S.C. 3304(a) ()
26. ADMINISTERED BY	27. PAYMENT WILL BE MADE BY

CONTRACTING OFFICER WILL COMPLETE ITEM 28 OR 29 AS APPLICABLE

☐ 28. NEGOTIATED AGREEMENT (Contractor is required to sign this document and return _____ copies to issuing office.) Contractor agrees to furnish and deliver all items or perform all work requirements identified on this form and any continuation sheets for the consideration stated in this contract. The rights and obligations of the parties to this contract shall be governed by (a) this contract award, (b) the solicitation, and (c) the clauses, representations, certifications, and specifications incorporated by reference in or attached to this contract.	☐ 29. AWARD (Contractor is not required to sign this document.) Your offer on this solicitation is hereby accepted as to the items listed. This award consummates the contract, which consists of (a) the Government solicitation and your offer, and (b) this contract award. No further contractual document is necessary.
30a. NAME AND TITLE OF CONTRACTOR OR PERSON AUTHORIZED TO SIGN (Type or print)	31a. NAME OF CONTRACTING OFFICER (Type or print)
30b. SIGNATURE	31b. UNITED STATES OF AMERICA
30c. DATE	BY
	31c. DATE

SECTION 00 73 00 SUPPLEMENTARY CONDITIONS

COMMENCEMENT, PROSECUTION, AND COMPLETION OF WORK - CONSTRUCTION (*APR 1984*)

The Contractor shall be required to (a) commence work under this contract within 10 calendar days after the date the Contractor receives the notice to proceed, (b) prosecute the work diligently, and (c) complete the entire work ready for use not later than ~~180~~ 240 calendar days. The time stated for completion shall include final cleanup of the premises.

(End of condition)

VARIATION IN ESTIMATED QUANTITY (*APR 1984*)

If the quantity of a unit-priced item in this contract is an estimated quantity and the actual quantity of the unit-priced item varies more than 15 percent above or below the estimated quantity, an equitable adjustment in the contract price shall be made upon demand of either party. The equitable adjustment shall be based upon any increase or decrease in costs due solely to the variation above 115 percent or below 85 percent of the estimated quantity. If the quantity variation is such as to cause an increase in the time necessary for completion, the Contractor may request, in writing, an extension of time, to be received by the Contracting Officer within 10 days from the beginning of the delay, or within such further period as may be granted by the Contracting Officer before the date of final settlement of the contract. Upon the receipt of a written request for an extension, the Contracting Officer shall ascertain the facts and make an adjustment for extending the completion date as, in the judgement of the Contracting Officer, is justified.

(End of condition)

SITE VISIT (CONSTRUCTION) (*FEB 1995*)

(a) The conditions, Differing Site Conditions, and Site Investigations and Conditions Affecting the Work, will be included in any contract awarded as a result of this solicitation. Accordingly, offerors or quoters are urged and expected to inspect the site where the work will be performed.

(b) Site visits may be arranged during normal duty hours by contacting:

Name: *Jacob Lambert*

Address: *100 Canal St., Mobile, AL 36602*

Telephone: *251-690-3487*

(End of Condition)

SECTION 01 00 00

ADDITIONAL SPECIAL CONTRACT REQUIREMENTS

PART 1 GENERAL

1.1 STATEMENT OF WORK

1.1.1 Dredging: The scope of work of the contract is to perform maintenance dredging in Mobile Harbor including disposal of dredged material into the Ocean Dredged Material Disposal Site (ODMDS). The base bid for maintenance dredging will be from Station 244+66 to 267+73 (turning basin), Station 267+73 to 600+00, and Station 1250+00 to 1370+00. A 100ft buffer will be applied to the red-side channel toe of the turning basin (Station 244+66 to 267+73). The buffer area will not be included in the required dredging prism; however, if material is removed/dredged from the 100ft buffer area it will be paid at the contract unit price for dredging.

Optional dredging assignments from Station 9+30 to 32+76, Station 105+00 to 150+00, and Station 164+00 to 212+00 may be included in the contract if funding becomes available and approved by the Contracting Officer (KO).

Should additional areas within Mobile Harbor require maintenance dredging during the contract period, such work may be included under this contract at the discretion of the Contracting Officer. The contractor is to perform such additional dredging in accordance with the same terms, conditions and specifications set forth in this contract.

The scope also includes supplying dredge-related supplies and equipment such as tugs, barges, cranes, attendant plants, and other marine equipment associated with channels and coastal restoration projects.

1.1.2 Dredge Material Disposal: All dredged material will be placed into the Ocean Dredged Material Disposal Site (ODMDS) located approximately 5-miles south of Dauphin Island, Alabama as shown in the contract drawings.

1.1.3 Project Duration and Completion: The work under this contract shall commence upon issuance of the Notice to Proceed and shall be completed within ~~180~~ **240** calendar days following the Notice to Proceed (NTP).

1.2 SUBMITTALS

See the technical sections for approval and detail requirements for submittals. Submit the following in accordance with Section 01 33 00 SUBMITTAL PROCEDURES and the required technical section:

SD-11 Closeout Submittals

Contractor Prepared As-Built Drawings; G, OP

1.3 CONTRACT DRAWINGS, MAPS, AND SPECIFICATIONS

(a) The Contractor will be furnished with a digital copy of the advertised solicitation, including all contract clauses, drawings, and specifications. Paper copies of the specifications and drawings will be the responsibility of the Contractor. The work shall conform to the

technical provisions outlined in the specifications and the contract drawings.

(b) Omissions from the drawings or specifications or the misdescription of details of work which are manifestly necessary to carry out the intent of the drawings and specifications, or which are customarily performed, shall not relieve the Contractor from performing such omitted or misdescribed details of the work, but they shall be performed as if fully and correctly set forth and described in the drawings and specifications.

(c) The Contractor shall check all drawings furnished them immediately upon their receipt and shall promptly notify the Contracting Officer of any discrepancies. Figures marked on drawings shall in general be followed in preference to scale measurements. Large scale drawings shall in general govern small scale drawings. The Contractor shall compare all drawings and verify the figures before laying out the work and will be responsible for any errors which might have been avoided thereby.

(d) The list of drawings and maps provided in the Index Sheet of the Plans for this solicitation are hereby incorporated by reference into these specifications.

NOTE: Refer to the folio of drawings for the index of drawings in this solicitation.

1.4 PHYSICAL DATA

Data and information furnished or referred to below is for the Contractor's information. The Government will not be responsible for any interpretation or conclusion drawn from the data or information by the Contractor.

1.4.1 General: The indications of physical conditions on the drawings and in the specifications are the result of site investigations and surveys.

1.4.2 Location: The work to be done under these specifications is located within the limits of Mobile Harbor federal navigation channel. Work assignments include Station 244+66 to 267+73, Station 267+73 to 600+00 and Station 1250+00 to 1370+00. The Ocean Dredged Material Disposal Site (ODMDS) is located approximately 5-miles south of Dauphin Island, Alabama. Optional dredging assignments are located in the Mobile River at Station 9+30 to 32+76, Station 105+00 to 150+00, and Station 164+00 to 212+00.

1.4.3 Contractor's Investigation Responsibility: The Contractor should investigate submerged, surface, and overhead structures in the work areas and other locations which may be necessary to traverse. The exact location, depths, and height of submarine cables, pipes, highlines, etc. (as applicable), are not known and it will be necessary for the Contractor to ascertain interference problems and notify the respective owners in advance of dredging operations. The Contractor shall make all arrangements with the respective owners of the structure to assure satisfactory completion of dredging in the vicinity with a minimum interruption of service and shall perform operations in such a manner as will avoid damage to these facilities.

1.4.4 Weather Conditions: The sites of the work are exposed to local disturbances in the Mobile Harbor, which may cause suspension of the work for short unknown periods of time. During tropical hurricanes which may occur from June to November, inclusive, the project channels do not afford a safe refuge for floating plant. There are no unusual currents except during floods, when velocities of 2 to 4 miles per hour may be expected; however, the Contractor should investigate all sites of work and determine for themselves

the requirements of the work. Under ordinary conditions, the Mean Tidal Range is 1.2 feet. The working season extends over the entire year. Tides in Mobile Harbor are affected by extended periods of strong north or south winds.

1.4.5 Transportation Facilities: The work areas are accessible by water via the Gulf Intracoastal Waterway and the Gulf of America. The Contractor shall investigate any limitations imposed by bridges or other structures on water access to the project site. Highway access (Federal, state, and local) is available to the near vicinity of all work areas. Rail and highway transportation is available to Mobile, Alabama. Water transportation is available to the site of the work. The Contractor shall make their own investigation of available roads for transportation, load limits for bridges and roads, and other road conditions affecting the transportation of materials and equipment to the work sites.

1.4.6 Channel Traffic: The traffic using the Mobile, Alabama Shipping Channel is considered to be a combination of heavy and large commercial vessels, and various sized recreational craft, respectively. The type of traffic consists of general container ships, bulk carriers, fuel tankers, tow boats, Navy ships, charter fishing boats, passenger boats, and pleasure craft. CAUTION: When navigation conditions become hazardous due to inclement weather (fog, storm, etc.) or other circumstances, the Contractor shall maintain appropriate communication with project traffic. The Contractor shall particularly comply with all U.S. Coast Guard regulations pertaining to proper activation of fog (and any other) signaling devices (sound, light, etc.).

1.4.7 Obstruction of Navigation Channels: The Government will not undertake to keep the work areas and navigation channels free from vessels or other obstructions, except to the extent of such regulations, if any, as may be prescribed by the Secretary of the Army, in accordance with the provisions of Section 7 of the Rivers and Harbors Act approved 8 August 1917. The Contractor will be required to conduct the work in such manner as to obstruct navigation as little as possible, and in case the Contractor's plant so obstructs any navigation channel as to make difficult or endanger the passage of vessels, said plant shall be promptly moved on the approach of any vessel to such an extent as may be necessary to afford a practicable passage. Upon the completion of the work the Contractor shall promptly remove their plant, including ranges, buoys, piles, and other marks placed by them under the contract in navigable waters or on shore.

1.5 TIME EXTENSIONS

Notwithstanding any other provisions of this contract, it is mutually understood that the time extensions for changes in the work will depend upon the extent, if any, by which the changes cause delay in the completion of the various elements of construction. The change order granting the time extension may provide that the contract completion date will be extended only for those specific elements so delayed and that the remaining contract completion dates for all other portions of the work will not be altered and may further provide for an equitable readjustment of liquidated damages under the new completion schedule. Change orders involving time extensions must be obtained in writing from the Government's Representative.

1.6 CONTRACTOR PREPARED AS-BUILT DRAWINGS

1.6.1 General: In accordance with SPECIAL CONTRACT REQUIREMENT paragraph: CONTRACT DRAWINGS, MAPS AND SPECIFICATIONS, the Government will furnish the Contractor one electronic set of solicitation drawing files and any amendments for use in preparation of as-built drawings by the Contractor. Copies of the drawings will be the responsibility of the

Contractor. The as-built drawings shall be a record of the construction as completed by the Contractor. They shall include all the information shown on the contract set of drawings and a record of all deviations, modifications, or changes from those drawings, however minor, which were incorporated in the work, all additional work not appearing on the contract drawings, and all changes which are made after final inspection of the contract work. In the event the Contractor accomplishes additional work which changes the as-built conditions after submission of the as-built drawings, the Contractor shall furnish revised and/or additional drawings as required to depict as-built conditions. The requirements for these additional drawings will be the same as for the as-built drawings included in the original submittal.

1.6.2 Red line as-built drawings: The Contractor shall have on their staff personnel to mark up a set of paper copy construction drawings to show the as-built conditions. These as-built marked copies shall be kept current and available on the job site at all times. All changes from the contract plans which are made in the work or additional information which might be uncovered during construction shall be accurately and neatly recorded, as the events occur, by means of details and notes. The Contractor shall call attention to entries by red lining areas affected. The red line as-built drawings will be jointly inspected for accuracy and completeness by the Contracting Officer's Representative and a responsible representative of the Contractor prior to submittal of each request for payment. The Contracting Officer Representative's approval of the current status of the as-built drawings shall be a prerequisite for the approval of request for progress payment and request for final payment under the contract. The drawings shall show the following information, but not be limited thereto:

1.6.2.1 The location and description of any utility lines or other installations of any kind or description known to exist within the construction area that are not already shown on the contract drawings. The location includes dimensions to permanent features.

1.6.2.2 The location and dimensions of any changes within the construction area.

1.6.2.3 All changes or modifications which result from the final inspection.

1.6.3 Submittal of as-built drawings for review and approval: The Contractor shall participate in monthly review meetings with the Contracting Officer's Representative to show the progress made the preceding month and make all required changes. At time of final construction inspection, the Contractor shall submit one copy of the red lined as-built drawings to the Contracting Officer's Representative for his review and approval. The as-built drawings shall be certified as to their correctness by the signature of an authorized representative of the Contractor. Upon Government approval of the Contractor's red lined copy of the as-built drawings, the Contractor shall prepare and provide an electronic set of as-built drawings by incorporating the red line marked up notations on the construction drawings into the electronic set of solicitation drawings and amendments. Submittals are to be to the Contracting Officer's Representative not later than ten (10) calendar days after project completion date.

1.6.4 Final Drawing Format:

1.6.4.1 The solicitation drawing files and any amendments thereto will be furnished to the Contractor in electronic format. The solicitation drawing files have been prepared using .dwg or .dxf format. The

Contractor shall utilize this file format to revise/redraft each solicitation drawing and/or amendment drawing to reflect all changes made during construction as indicated by the red line marked up notations on the construction drawings. Revisions/redrafting shall match the font styles, sizes, and formats; line weights/thicknesses and styles/types; and all other drafting elements used on the solicitation drawing/amendments. All elements must be incorporated into each as-built drawing file; the use of reference files shall not be permitted.

1.6.4.2 All revisions made to the solicitation drawings and/or amendment drawings to reflect changes made during construction shall be flagged and shall have the revision block completed as follows. The entry in the description column of the revision block shall read "AS-BUILT". The date of the revision and one approving initial from a responsible person within the Contractor's Firm shall also be included in the revision block. Above the drawing title block the drawing will be labeled in bold letters "AS-BUILT". The flagged changes and revision block format shall be in accordance with the examples shown in the Mobile District Design Manual located on the Internet at <http://www.sam.usace.army.mil/Missions/MilitaryMissions/Engineering/Engineering-Design-Manual/>

The Contractor shall also furnish a revised index of drawings to match the actual design drawings. The drawing title blocks shall be in a uniform format to match the requirements as specified in the Design Manual.

1.6.4.3 The electronic set of as-built drawing files shall be submitted in .dwg or .dxf file format.

1.6.5 Payment: No separate payment will be made for preparation of the as-built drawings required under this contract. All costs will be considered a subsidiary obligation of the contract.

1.7 ATTENDANT PLANT

1.7.1 Attendant plant shall be composed of such barges, fuel, water, pipe derrick, anchor, etc., floating, submerged, and slip joint discharge pipe, and other attendant or auxiliary plant as may be required for operations under these specifications whether or not these items are specifically mentioned. The auxiliary and attendant plant shall be in good condition and of sufficient size and capability to efficiently serve the dredge.

1.7.1.1 A Marine VHF Radio, FCC type accepted with the following channels: Channel 16, (156.8 MHZ), Channel 13, (156.65 MHZ), Channel 12, (156.6 MHZ), Channel 14, (156.7 MHZ), and Channels 26 and 28 for public correspondence. A separate receiver must be provided on Channel 13, (156.6 MHZ) in compliance with Public Law 92-63.

1.7.1.2 In addition to the above-mentioned radios, the Contractor shall provide additional space in the inspector's office as specified in the paragraph entitled "Inspector's Office" for placement of one VHF marine radio. The radio shall be able to receive all VHF marine channels and scan two channels continuously. The radio will be furnished at the expense of the Contractor.

1.7.2 Transport Vessel: The Contractor shall provide one transport vessel, with twin propellers, not less than 40 feet in overall length, with enclosed space for three passengers, to adequately operate in all areas included in the scope of work. This vessel must have an operator on site at all times; be capable of traveling at a speed of 20 knots (23 MPH) or greater in good weather and capable of traveling safely at night and in intense fog; (such vessel shall meet or exceed US Coast Guard regulations for vessels 65 feet or less in length); and the vessel shall have a Certificate of Inspection by the US Coast Guard, or at least from a Marine Surveyor. This vessel shall be for the primary use of the Government Inspector. The use of this vessel for Contractor's crew changes, or any other use of this vessel by the Contractor shall be secondary to the Government Inspector shift changes. This vessel shall be equipped with the following at a minimum: built-in fuel tanks with correctly operating fuel gauges; marine and company radios; windshield wipers; running and spotlights; and all required survey equipment. The Contractor shall secure satisfactory landing location for this vessel.

1.7.3 Inspector's Office: The Contractor shall provide the Government inspector office space on board the dredge. The office shall include air conditioning, desk, chair, file cabinet, etc. The office shall be equipped with a dredge electronic tracking system capable of continuously displaying real time positioning of the dredge, by track plot or CRT screen, in relation to both the before-dredge surveyed shoals and at the disposal area. This system should be identical to the matrix screen found in the lever room.

1.8 PRECONSTRUCTION CONFERENCE

1.8.1 A preconstruction conference will be arranged by the Government's representative after award of contract and before commencement of work. The Government's representative will notify the Contractor of the time and date set for the meeting. At this conference, the Contractor shall be oriented with respect to Government procedures and line of authority, contractual, administrative, and construction matters. Additionally, a schedule of required submittals will be discussed.

1.8.2 The Contractor shall bring to this conference the submittals listed in Section 01 33 00 Paragraph entitled Preconstruction Submittals in either completed or draft form.

1.9 PROJECT SIGN

The Contractor shall furnish and install a project sign and a safety performance sign at all public boat marinas within 10 miles of dredging operations or moored equipment \within 60 calendar days after notice to proceed. The signs shall be constructed as indicated on the figures bound herein. Size, lettering, color, and paint shall conform to the details shown in Figure 5B "Construction Sign," Figure 5C "Fabrication and Mounting Guidelines," and Figure 5D "Safety Performance Sign," bound herein. All parts of frames and signs shall be given a primer coat of oil paint and a minimum of two finish coats of white semi-gloss paint. The Contractor shall maintain the sign in a "like new" condition throughout the life of the project, repainting and replacing members as necessary to accomplish this requirement. A map showing the location of all project

signs shall be submitted to the Government. Final Payment will be withheld until all signs are removed. No direct payment will be made for the signs or maintenance of the signs.

1.10 LIQUIDATED DAMAGES

If the Contractor fails to complete the work within the time specified in the contract, the Contractor shall pay liquidated damages to the Government in the amount of \$4,934.00 for each calendar day of delay until the work is completed and accepted.

If the Government terminates the Contractor's right to proceed, liquidated damages will continue to accrue until the work is completed. These liquidated damages are in addition to excess costs of repurchase under the Termination clause.

1.11 DATUM AND BENCHMARKS

The plane of reference of Mean Lower Low Water (MLLW) as used in these specifications is that determined by the benchmark and tide gage data as on file at the U.S Army, Corps of Engineers, Mobile District Office and the Irvington Site Office. The Contractor can obtain such data from the Project Engineer, Irvington Site Office, telephone (251)957-6019.

1.12 FINAL EXAMINATION AND ACCEPTANCE

As soon as practicable (within 14 calendar days or less if agreed to by the Contracting Officer) after completion of the entire work or any designated section thereof (if the work is divided into sections), as in the opinion of the Contracting Officer, the work in this section will not be subject to damage by further operations under the contract, such work will be thoroughly examined at the cost and expense of the Government by sounding or by sweeping, or both, as determined by the Contracting Officer, for determination of ACCEPTABILITY of PERFORMANCE by the Contractor. In order to ensure a feasible "face" of material for efficient dredging operations, work sections will be considered accepted if 90% of the material from the required dredging prism is removed; however, the Contractor should make an attempt to dredge uniformly to not leave shoals and/or lumps. Should any shoals, lumps, or other lack of contract required dredging prism depth, width, or slope beyond the 90% acceptance criteria be disclosed by the Government's examination, the Contractor will be required to remove said shoals by dragging or dredging the affected surface until the acceptable condition is corrected. Payment will be based on before-dredging (BD) and after-dredging(AD) quantity computations. Payment quantities and acceptance will be based on high frequency survey data run on 100-ft intervals including points of intersection. The contract drawings include typical sections showing the existing channel dimensions, the advanced maintenance, and the allowable overdepth. If the unacceptable shoal (work) area(s) of the channel bottom/slope is soft and the shoal (work) area(s) is small and forms no material obstruction to navigation, the removal of such shoal(s) may be waived at the discretion of the Contracting Officer. If re-dredging is required to correct the unacceptable work, the dredging will be paid at the current unit price for dredging, however, the maximum payment quantity (original and re-dredgings) will be the original computed pay quantity in the required dredging prism (plus any applicable allowable overdepth quantity, as applicable) based on the original before-dredging surveys. The Contractor or their authorized representative will be notified when soundings and/or sweepings are to be made and will be

permitted to accompany the survey party. When the original or unacceptable area(s) is found to be in satisfactory condition, it will be accepted finally. Should more than two sounding or sweeping operations by the Government over an area be necessary by reason of work for the removal of unacceptable shoals disclosed at a prior sounding or sweeping, the cost of such third and any subsequent sounding or sweeping operations will be charged against the Contractor at the rate of \$2,500.00 per day for each day in which the Government (or Government A-E Contractor) plant is engaged in sounding or sweeping and/or is enroute to or from the site or held at or near the said site for such operations.

For the purpose of acceptance, the work to be done will be divided into approximate 2,000-foot sections as defined below:

Dredging Reach No.	From Station	To Station
1 (partial)	244+66	260+00
2-18	260+00	600+00
19-24	1250+00	1370+00

Optional dredging assignments will be divided into approximate 2,000-foot sections as defined below:

Dredging Reach No.	From Station	To Station
--------------------	--------------	------------

Option 1:

1 (partial)	9+30	22+00
2 (partial)	22+00	32+76

Option 2:

1 (partial)	105+00	110+00
2-3	110+00	150+00

Option 3:

1 (partial)	164+00	172+00
2-3	172+00	212+00

1.12.1 Final acceptance of the whole or part of the work and the deductions or corrections of deductions made thereon will not be reopened after having once been made, except on evidence of collusion, fraud, or obvious error, and the acceptance of a completed section shall not change the time of payment of the retained percentages of the whole or any part of the work.

1.12.2 After acceptance by the Government, of the whole or part of the work, but before the Contractor has effected demobilization, should any shoals, lumps, or other lack of required contract depth be disclosed by an examination made by the Government, the Contractor may be requested to remove any such shoal by using the on-site dredging plant and process, to be paid at the original contract rate for dredging in this location. This additional dredging is subject to a supplemental agreement under the contract and is only activated by the Contracting Officer (and if funds

are available).

1.12.3 Shoaling in the dredging prism, which occurs in the whole or part of the work not yet offered by the Contractor as candidate for acceptance examination by the Government, is the responsibility of the Contractor (notwithstanding other clauses or provisions of this contract). The Contractor should order the accomplishment of all the work of this contract in such a manner that causes the least exposure to such in-process shoaling.

1.13 PERFORMANCE EVALUATION OF CONTRACTOR

As a minimum, the Contractor's performance will be evaluated upon final acceptance of the work. However, interim evaluation may be prepared at any time during the contract performance when determined to be in the best interest of the Government.

The evaluation will be completed in the Contractor Performance Assessment Reporting System (CPARS), and the Contractor will be rated either exceptional, very good, satisfactory, marginal, or unsatisfactory in the areas of Quality, Schedule, Cost Control, Management, Small Business, Regulatory, and Other Areas. The Contractor will be advised of any unsatisfactory rating, either in an individual element or in the overall rating, prior to completing the evaluation, and all Contractor comments will be made a part of the official records. Performance Evaluation Reports will be available to all DOD Contracting offices for their future use in determining Contractor responsibility, in compliance with DFARS 36.201(c)(1).

-- End of Section --

SECTION 01 00 01 GENERAL CONTRACT REQUIREMENTS

1. BOARD OF CONTRACT APPEALS	2
2. REQUESTS FOR INFORMATION	2
3. DESCRIPTION OF WORK	3
4. PREAWARD INFORMATION	3
5. CONTRACT PRICES - BIDDING SCHEDULE	4
6. REQUIRED INSURANCE	4
7. EQUIPMENT OWNERSHIP AND OPERATING EXPENSE SCHEDULE.....	5
8. U.S. ARMY CORPS OF ENGINEERS SAFETY AND HEALTH REQUIREMENTS MANUAL, EM 385- 1-1	5
9. AFFILIATED BIDDERS	6
10. MANUALS AND PUBLICATIONS	6
11. BULLETIN BOARD.....	6
12. LABOR REPORTS	7
13. PROTECTION OF MATERIAL AND WORK	7
14. ENGLISH-SPEAKING REPRESENTATIVE	7
15. PROHIBITION AGAINST CONTRACTING WITH INDIVIDUALS OR ENTITIES DESIGNATED AS SIGNIFICANT NARCOTICS TRAFFICKERS	8
16. CONTRACTOR PAYMENT REQUEST	8
17. PARTNERING.....	8
18. POTABLE WATER.....	8
19. PRESERVATION OF HISTORICAL, ARCHEOLOGICAL, AND CULTURAL RESOURCES .	9
20. WORK IN QUARANTINED AREA	9
21. KEY PERSONNEL, SUBCONTRACTORS AND OUTSIDE ASSOCIATES OR CONSULTANTS	9
22. ACCOMMODATIONS AND MEALS FOR INSPECTORS	10
23. SEAGOING BARGE ACT	10
24. DELIVERY, PROSECUTION AND TERMINATION.....	10
25. SUNDAYS, HOLIDAYS AND NIGHTS	11
26. RETAINAGE--SMALL BUSINESS SUBCONTRACTING REPORTING	11
27. JOINT VENTURE BID REQUIREMENTS.....	11
28. SMALL BUSINESS SUBCONTRACTING PLAN	12
29. PROCEDURES FOR SUBMISSION OF BIDS AND BID OPENING	12

1. BOARD OF CONTRACT APPEALS

The agency board of contract appeals having jurisdiction over all appeals from final decisions of the Contracting Officer under the Contract Disputes Act of 1978 is the Armed Services Board of Contract Appeals, Skyline Six, 5109 Leesburg Pike, 7TH Floor, Falls Church, Virginia 22041.

End of Paragraph

2. REQUESTS FOR INFORMATION

Any questions about this solicitation, including technical questions about plans and specifications, shall be submitted via the Bidder Inquiry Portal in ProjNet at <https://www.projnet.org>. To submit and review inquiry items, prospective vendors will need to use the Bidder Inquiry Key presented below and follow the instructions listed below the key for access. A prospective vendor who submits a comment /question will receive an acknowledgement of their comment/question via email, followed by an answer to the comment/question after it has been processed by our technical team. All timely questions and approved answers will be made available through ProjNet.

Questions shall be submitted no later than **17 April 2026** at 2:00 PM Central Time (CT) to allow time for a response, and amendment to the solicitation if necessary. On this date and time, the portal will be closed.

For technical questions, no other means of communication, e-mail, fax, or telephone will be accepted. Oral exchanges between Offerors or Bidders and the government prior to award of the contract will not be binding. In addition to information available to Offerors or Bidders on the Bidder Inquiry Portal, any information concerning this solicitation will be furnished to all Offerors or Bidders as an amendment to the solicitation if the information is necessary to the submittal of offers or bids.

The Solicitation Number is: W9127826BA001

The Bidder Inquiry Key is: BKW6YE-UVRJUF

Specific Instructions for ProjNet Bid Inquiry Access:

1. From the ProjNet home page linked above, click on **Quick Add** on the upper right side of the screen.
2. Identify the Agency. This should be marked as **USACE**.
3. Key. Enter the **Bidder Inquiry Key** listed above.
4. Email. Enter the email address you would like to use for communication.
5. Click Continue. A page will then open saying that a user account was not found and will ask you to create one using the provided form.
6. Enter your First Name, Last Name, Company, City, State, Phone, Email, Secret Question, Secret Answer, and Time Zone. Make sure to remember your Secret Question and Answer as they will be used from this point on to access the ProjNet system.
7. Click Add User. Once this is completed you are now registered within ProjNet and are currently logged into the system.

Specific Instructions for Future ProjNet Bid Inquiry Access:

1. For future access to ProjNet, you will not be emailed any type of password. You will utilize your Secret Question and Secret Answer to log in.

2. From the ProjNet home page linked above, click on **Quick Add** on the upper right side of the screen.
3. Identify the Agency. This should be marked as **USACE**.
4. Key. Enter the **Bidder Inquiry Key** listed above.
5. Email. Enter the email address you used to register previously in ProjNet.
6. Click Continue. A page will then open asking you to enter the answer to your Secret Question.
7. Enter your Secret Answer and click Login. Once this is completed you are now logged into the system.

Note: Questions/comments should be entered in the system one at a time. **Lists of questions uploaded into ProjNet, regardless of the format, will not be answered.**

Offerors are requested to review the solicitation and amendments in their entirety, as well as to review the Bidder Inquiry Portal for previous questions and responses, prior to submission of a new inquiry on the Portal.

CAUTION: ANY INQUIRY SUBMITTED AND ANSWERED WITHIN THIS SYSTEM, WILL BE ACCESSIBLE TO VIEW BY ALL INTERESTED OFFERORS OR BIDDERS ON THIS SOLICITATION.

The call center for the ProjNet operates weekdays from 8 AM to 5 PM U.S. Central Time Zone. The telephone number is 1-800-428-HELP.

End of Paragraph

3. DESCRIPTION OF WORK

In general, the requirement will be for trailing suction hopper dredges and/or mechanical dredges with scows for maintenance dredging of Mobile Harbor, Mobile, Alabama.

NOTE: The above general outline of features of the work does not in any way limit the responsibility of the Contractor to perform all work and furnish all plant, labor, equipment and materials required by the specifications and the drawings referred to therein.

Disclosure of Magnitude: \$10,000,000 - \$25,000,000

End of Paragraph

4. PREAWARD INFORMATION

Each bidder shall furnish either with his bid or within 3 days after a request is made for submittal of preaward data a statement of whether he is now or ever has been engaged in any work similar to that covered by the specifications herein, the dollar value thereof, the year in which such work was performed, and the manner of its execution, and giving such other information as will tend to show the bidder's ability to prosecute the required work. The "such other information" referred to above shall include but is not limited to the following:

- a. The name and address of the office or firm under which such similar work was performed. Include names and telephone numbers of personnel within each organization who are familiar with the prospective contractor's performance.

- b. A list of key personnel available for the instant project and their qualifications.
- c. A copy of bidder's latest financial statement, including the names of banks or other financial institutions with which the bidder conducts business. If the financial statement is more than 60 days old, a certificate should be attached stating that the financial condition is substantially the same, or if not the same, the changes that have taken place. Such statements will be treated as confidential.
- d. A list of present commitments, including the dollar value thereof, and name of office under which the work is being performed. Include names and telephone numbers of personnel within each organization who are familiar with the prospective contractor's performance.
- e. If the bid exceeds \$1,000,000 and the prospective contractor is a large business concern, he must submit a subcontracting plan in compliance with the Contract Clause entitled SMALL BUSINESS SUBCONTRACTING PLAN.

End of Paragraph

5. CONTRACT PRICES - BIDDING SCHEDULE

Payment for the various items listed in the Bidding Schedule shall constitute full compensation for furnishing all plant, labor, equipment, appliances, materials and bonds (performance and payment), and for performing all operations required to complete the work in conformity with the drawings and specifications. All costs for work not specifically mentioned in the Bidding Schedule shall be included in the contract prices for the items listed.

End of Paragraph

6. REQUIRED INSURANCE

The Contractor shall procure and maintain during the entire period of his performance under this contract, the following minimum insurance in accordance with the Contract Clause entitled "Insurance-Work on a Government Installation." Workmen's Compensation and Employers' liability Insurance:

Workmen's Compensation and Occupational Disease Coverage in accordance with statutory limits.
Employers' Liability Coverage with a minimum limit of \$100,000.

Comprehensive Automobile Liability Insurance:

Bodily injury coverage with minimum limits of \$200,000 per person and \$500,000 per occurrence. Property Damage Coverage with a minimum limit of \$20,000 per occurrence.

Comprehensive General Liability Insurance:

Bodily injury coverage with minimum limits of \$500,000 per occurrence.

End of Paragraph

7. EQUIPMENT OWNERSHIP AND OPERATING EXPENSE SCHEDULE

(a) This clause does not apply to terminations.

(b) Allowable cost for construction and marine plant and equipment in sound workable condition owned or controlled and furnished by a contractor or subcontractor at any tier shall be based on actual cost data for each piece of equipment or groups of similar serial and series for which the Government can determine both ownership and operating costs from the contractor's accounting records. When both ownership and operating costs cannot be determined for any piece of equipment or groups of similar serial or series equipment from the contractor's accounting records, costs for that equipment shall be based upon the applicable provisions of EP 1110-1-8, "Construction Equipment Ownership and Operating Expense Schedule," Region III. Working conditions shall be considered to be average for determining equipment rates using the schedule unless specified otherwise by the contracting officer. For equipment not included in the schedule, rates for comparable pieces of equipment may be used or a rate may be developed using the formula provided in the schedule. For forward pricing, the schedule in effect at the time of negotiations shall apply. For retrospective pricing, the schedule in effect at the time the work was performed shall apply.

(c) Equipment rental costs are allowable, subject to the provisions of FAR 31.105(d)(ii) and FAR 31.205-36. Rates for equipment rented from an organization under common control, lease-purchase arrangements, and sale-leaseback arrangements will be determined using the schedule, except that actual rates will be used for equipment leased from an organization under common control that has an established practice of leasing the same or similar equipment to unaffiliated lessees.

(d) When actual equipment costs are proposed and the total amount of the pricing action exceeds the small purchase threshold, the contracting officer shall request the contractor to submit either certified cost or pricing data, or partial/limited data, as appropriate. The data shall be submitted on Standard Form 1411, "Contract Pricing Proposal Cover Sheet."

End of Paragraph

8. U.S. ARMY CORPS OF ENGINEERS SAFETY AND OCCUPATIONAL HEALTH REQUIREMENTS MANUAL, EM 385- 1-1

This paragraph applies to contracts and purchase orders that require the contractor to comply with EM 385-1-1 (e.g., contracts that include the Accident Prevention clause at FAR 52.236-13 and/or other safety provisions). EM 385-1-1 and its changes are available at https://www.publications.usace.army.mil/Portals/76/EM%20385-1-1%20_EFFECTIVE%2015March2024.pdf. The Contractor shall be responsible for complying with the current edition and all changes posted on the web through the date that is 10 calendar days prior to the date offers are due. If the solicitation is amended to extend the time set for receipt of offers, the 10 calendar days rule stated above shall be applied against the amended date. (For example, if offers are due on 10 April, all changes posted on or before 31 March shall apply to the contract. If the time for receipt of offers is extended from 10 April to 20 April, all changes posted on or before 10 April shall apply to the contract.)

End of Paragraph

9. AFFILIATED BIDDERS

(a) Business concerns are affiliates of each other when, either directly or indirectly, (1) one concern controls or has the power to control the other, or (2) a third party controls or has the power to control both.

(b) Each bidder shall submit with its bid an affidavit stating that it has no affiliates or containing the following information.

(1) The names and addresses of all affiliates of the bidder.

(2) The names and addresses of all persons and concerns exercising control or ownership of the bidder and any or all of its affiliates, and whether they exercise such control or ownership as common officers, directors, stockholders, holding controlling interest, or otherwise.

Please check when applicable:

_____ The offeror certifies that it has no affiliates.

_____ The offeror certifies that it is affiliated with the concerns designated on an attached affidavit.

End of Paragraph

10. MANUALS AND PUBLICATIONS

Engineering manuals and Concrete Research Division Publications may be obtained from the addresses given below.

Engineering Manuals:

U. S. Army, Corps of Engineers
Publications Depot
2803 -52nd Avenue
Hyattsville, MD 20781-1102

Concrete Research Division Publications:

U.S. Army Engineer Waterways Experiment Station
ATTN: Publications Distribution Unit
P.O. Box 631
Vicksburg, MS 39180

End of Paragraph

11. BULLETIN BOARD

Immediately upon beginning of work under this contract, the Contractor shall provide at the job site a weatherproof glass-covered bulletin board for displaying the fair employment poster, wage rates, and safety bulletins and posters. Emergency telephone numbers and reporting instructions for ambulance, physician,

hospital, fire and police shall be posted. The bulletin board shall be located in a conspicuous place easily accessible to all and legible copies of the aforementioned data shall be displayed until work under the contract is completed. No direct payment will be made for the bulletin board.

End of Paragraph

12. LABOR REPORTS

The Contractor shall promptly furnish and shall cause any subcontractors to furnish in like manner within 7 days after the regular payment date of each weekly payroll to the Contracting Officer, a copy of such payroll together with a statement of compliance with respect to the wages paid each of its employees (which shall not be deemed to apply to persons in classifications higher than laborers and mechanics and those who are the immediate supervisors of such employees) engaged on the work. If the Contractor or any of his subcontractors fail to furnish copies of such payrolls, the Contracting Officer may disapprove all or part of any progress payment estimate for the period covered by such payrolls until they are received by him. The Contractor shall also prepare and furnish such labor reports as may be required by the Department of Labor.

End of Paragraph

13. PROTECTION OF MATERIAL AND WORK

The Contractor shall at all times protect and preserve all materials, supplies and equipment of every description (including property which may be Government-furnished or owned) and all work performed. All reasonable requests of the Contracting Officer to enclose or specially protect such property shall be complied with. If, as determined by the Contracting Officer, material, equipment, supplies, and work performed are not adequately protected by the Contractor such property may be protected by the Government and the cost thereof may be charged to the Contractor or deducted from any payments due him.

End of Paragraph

14. ENGLISH-SPEAKING REPRESENTATIVE

At all times when any performance of the work at any site is being conducted by any employee of the Contractor or his subcontractors, the Contractor shall have a representative present at each site who has the capability of receiving instructions in the English language, fluently speaking the English language and explaining the work operations to persons performing the work in the language that those performing the work are capable of understanding. The Contracting Officer shall have the right to determine whether the proposed representative has sufficient technical and bilingual capabilities, and the Contractor shall immediately replace any individual not acceptable to the Contracting Officer.

End of Paragraph

15. PROHIBITION AGAINST CONTRACTING WITH INDIVIDUALS OR ENTITIES DESIGNATED AS SIGNIFICANT NARCOTICS TRAFFICKERS

Pursuant to Executive Order 12978 entitled "Blocking Assets and Prohibiting Transactions with Significant Narcotic Traffickers" dated October 21, 1995, the offeror certifies that it has not and will not be involved in business transactions with individuals or business entities designated as significant narcotics traffickers under this Executive Order. For a current listing of specially designated nationals and blocked persons, contact the Office of Foreign Assets Control, Department of the Treasury, Washington, DC 22201; telephone 202/622-2420.

End of Paragraph

16. CONTRACTOR PAYMENT REQUEST

A copy of CESAM Form 1151 entitled PROMPT PAYMENT CERTIFICATION AND SUPPORTING DATA FOR CONTRACTOR PROGRESS PAYMENT INVOICE is included hereinafter, with instructions, following the Wage Rates. This form will be used in conjunction with the CONTRACT CLAUSE entitled PAYMENTS UNDER FIXEDPRICE CONSTRUCTION CONTRACTS. The contracting Officer will provide copies of the form to the Contractor upon request. The Contractor shall complete the form, sign the certification and submit it with each progress payment invoice.

End of Paragraph

17. PARTNERING

In order to accomplish this contract most effectively, the Government proposes to form a cohesive partnership with the Contractor and its subcontractors. This partnership would strive to draw on the strengths of each organization in an effort to achieve a quality project done right the first time, within budget and on schedule. This partnership would be bilateral in make-up and participation will be totally voluntary. Any cost associated with implementing this partnership will be agreed to by both parties and will be shared equally with no change in contract price.

End of Paragraph

18. POTABLE WATER

Testing of all potable water storage facilities and dispensing systems with a storage capacity of ten or more gallons, will be conducted by an independent testing laboratory approved by the Contracting officer as follows:

- (1) Prior to the commencement of work.
- (2) Minimum of monthly, after start of work for the duration of the contract.
- (3) After any repairs or modifications are made to the potable water storage or dispensing systems.
- (4) After any intake of potable water into the storage system.

All samples shall meet state and local water quality standards for potable water. A copy of all test results will be forwarded to the Contracting Officer within seven working days for his review.

In the event a tested sample fails to meet state and local water quality standards, all dispensing outlets connected to the failing water storage shall be labeled as non-potable and other means of potable water shall be obtained until water quality can be provided to meet the required standards.

To ensure potable water maintains water quality standards all portable potable water dispensing units shall be checked daily for cleanliness. All hoses used in the transfer of potable water shall be conspicuously marked and kept in such a manner as to keep them from being contaminated. These hoses shall be used for potable water transfer only.

End of Paragraph

19. PRESERVATION OF HISTORICAL, ARCHEOLOGICAL, AND CULTURAL RESOURCES

(a) If known historical, archeological, and cultural resources exist within the Contractor's work area, they have been designated on the contract drawings. The Contractor shall install protection for these resources as shown on the drawings and shall be responsible for their preservation during the contract.

(b) If, during construction activities, the Contractor observes items that might have historical or archeological value, such observations shall be reported immediately to the Contracting Officer so that the appropriate authorities may be notified and a determination can be made as to their significance and what, if any, special disposition of the finds should be made. The Contractor shall cease all activities that may result in the destruction of these resources and shall prevent his employees from trespassing on, removing, or otherwise damaging such resources.

End of Paragraph

20. WORK IN QUARANTINED AREA

The work called for by this contract involves activities in counties quarantined by the Department of Agriculture to prevent the spread of certain plant pests which may be present in the soil. The Contractor agrees that all construction equipment and tools to be moved from such counties shall be thoroughly cleaned of all soil residues at the construction site with water under pressure and that hand tools shall be thoroughly cleaned by brushing or other means to remove all soil. In addition, if this contract involves the identification, shipping, storage, testing, or disposal of soils from such a quarantined area, the Contractor agrees to comply with instructions. The Contractor agrees to assure compliance with this obligation by all subcontractors.

End of Paragraph

21. KEY PERSONNEL, SUBCONTRACTORS AND OUTSIDE ASSOCIATES OR CONSULTANTS

Any key in-house personnel, subcontractors and outside associates or consultants required by the Contractor in connection with the services covered by the contract will be limited to individuals or

firms that were specifically identified and agreed to during negotiations. The Contractor shall obtain the Contracting Officer's written consent before making any substitution for these designated key personnel, subcontractors, associates, or consultants.

End of Paragraph

22. ACCOMMODATIONS AND MEALS FOR INSPECTORS

a. The Contractor shall furnish regularly to inspectors on board the dredge or other craft upon which they are employed, a suitable separate room for office purposes. The room shall be fully equipped and maintained to the satisfaction of the Contracting Officer; it shall be properly heated, ventilated, and lighted, and shall have a desk which can be locked, a chair for each inspector, and washing conveniences. The entire cost to the Contractor for furnishing, equipping, and maintaining the foregoing accommodations shall be included in the contract price. If the Contractor fails to meet these requirements, the facilities referred to above will be secured by the Contracting Officer, and the cost thereof will be deducted from payments to the Contractor.

b. If the Contractor maintains on this work an establishment for the subsistence of his own employees, he shall, when required, furnish the inspectors employed on the work, and to all Government agents who may visit the work on official business, meals of a quality satisfactory to the Contracting Officer. The Contractor will be responsible for collecting from all inspectors and other Government agents the following amount per person for each meal: Breakfast - \$2.25, Lunch - \$3.25 and Dinner - \$3.50. End of Paragraph

End of Paragraph

23. SEAGOING BARGE ACT

The Seagoing Barge Act (46 U.S. C. 395 et seq.) applies to this project. In the event the low bidder contemplates using plant that requires U.S. Coast Guard certification to comply with this Act, the low bidder shall within 15 calendar days after bid opening submit a copy of said certificate to the Contracting Officer. Failure to produce the certificate within the required time shall subject the bidder to a determination of nonresponsibility.

End of Paragraph

24. DELIVERY, PROSECUTION AND TERMINATION

(a) The dredge and attendant plant shall be delivered by and at the expense of the Contractor to the Mobile District's navigation projects located in Alabama, Mississippi, and Florida.

(b) The Contractor shall prosecute the work assigned him with faithfulness and energy, and at all times endeavor to meet the schedule of dredging operations as determined by the Contracting Officer.

(c) Upon termination of the lease, the plant will be released to the Contractor.

End of Paragraph

25. SUNDAYS, HOLIDAYS AND NIGHTS

Due to the nature of the work, a twenty-four (24) hour operation will be performed on a seven (7) day week schedule. Work shall be performed on days declared by Congress as holidays for per diem employees that fall within the work described above. Deviation from the work week contracted for will be subject to the approval of the Contracting Officer. -

Operation Day. The dredge, together with the necessary attendant plant and with adequate crew, shall be operated 24 hours per day on an optional shift basis.

End of Paragraph

26. RETAINAGE--SMALL BUSINESS SUBCONTRACTING REPORTING

Reference is made to contract clause(s) 252.219-7003, Small Business Subcontracting Plan (DoD Contracts) and 52.219-16, Liquidated Damages-- Subcontracting Plan. In order to ensure compliance with these clauses, retainage will be withheld from progress payments due the contractor in an amount sufficient to protect the Government's ability to assess Liquidated Damages for failure to submit timely SF 294 and SF 295 reports.

The formula for retainage is as follows:

"Total dollar amount proposed for subcontracting to small business multiplied by percentage of actual progress on the contract, up to a maximum of 10% of the given progress payment, shall be withheld from the next progress payment due after a contractor fails to submit a required report. If one or more reports have been submitted before such failure, formula for determining the amount of retainage will be adjusted by deducting any amounts reported as subcontracted to small business from the total dollar amount proposed to be subcontracted and the difference multiplied by the percent of actual progress, up to a maximum of 10% of the given progress payment."

End of Paragraph

27. JOINT VENTURE BID REQUIREMENTS

When bidding as a Joint Venture, all members of the Joint Venture must sign all contract documents and must complete the Representations and Certifications unless a written agreement by the Joint Venture is furnished with the bid designating one firm with the authority to bind the other member(s) of the Joint Venture. In addition, a copy of the Joint Venture Agreement fully executed by both parties must be submitted with the bid. Failure to comply with the foregoing requirements may render the bid non-responsive. For 8(a) Joint Ventures, the Joint Venture shall also submit evidence that it has notified and discussed the proposed joint venture with its SBA Servicing Agency. Additionally, for 8(a) Set-aside procurements, all prospective Joint Ventures must comply with Title 13 Code of Federal Regulations (CFR) Part 124.513. Award to an 8(A) Joint Venture shall be contingent upon SBA approval of the 8(A) Joint Venture Agreement. For HubZone Set-

Aside procurements, and awards to HUBZone small business concerns, a HUBZone Joint Venture must comply with 13 CFR 126.616.

End of Paragraph

28. SMALL BUSINESS SUBCONTRACTING PLAN

(a) This clause does not apply to small business concerns.

(b) Offerors who are large businesses, upon request by the Contracting Officer, shall submit a subcontracting plan in accordance with the contract clause in Section 00 70 00, Revolutionary FAR Overhaul (RFO) 52.219-9 Alt I, Small Business Subcontracting Plan Alternate I and DFARS 252.219-7003, Small Business Subcontracting Plan (DoD Contracts) in Section 00 72 00.

(c) Approval of subcontracting plan by the Contracting Officer will be contingent upon providing a plan that includes realistic goals and makes a good faith effort to acquire services and supplies from small businesses

End of Paragraph

29. PROCEDURES FOR SUBMISSION OF BIDS AND BID OPENING

In accordance with RFO 14.3, bidders will be required to submit their bids in response to this IFB solicitation by 2:00 PM CDT on ~~27 April~~ 04 May 2026 via electronic means, to include bid bonds. Physical copies of bid bonds will not be required to be submitted unless otherwise requested by the Contracting Officer at a later date. Bidders that are interested in submitting bids will use the **Procurement Integrated Enterprise Environment (PIEE) Module**, which provides a time stamped notification to the Government when a file is uploaded. See attachment "PIEE Solicitation Module Vendor Access Instructions" for instructions on getting access to the PIEE Solicitation Module and submitting your proposal. A timely bid is the one time stamped by PIEE before the deadline established above.

The public bid opening will be held in-person on ~~27 April~~ 04 May 2026 at 2:45 pm CDT. Interested parties are welcome to participate by attending USACE Mobile District Office, 100 Canal St., Mobile, AL 36602. Please contact either Elizabeth Trimble, 251-690-3329 or Terri Adams, 251-441-6500 upon arrival to be escorted to the conference room.

End of Paragraph